

view of the law, Judge Stump surely had jurisdiction to consider the petition and to act thereon." *Sparkman v. McFarlin*, Civ. No. F 75-129 (ND Ind., May 13, 1976). Accordingly, under *Bradley v. Fisher*, 13 Wall. 335, 351 (1872), Judge Stump was entitled to judicial immunity.³

On appeal, the Court of Appeals for the Seventh Circuit reversed the judgment of the District Court,⁴ holding that the "crucial issue" was "whether Judge Stump acted within his jurisdiction" and concluding that he had not. 552 F. 2d, at 174. He was accordingly not immune from damages liability under the controlling authorities. The Court of Appeals also held that the judge had forfeited his immunity "because of his failure to comply with elementary principles of procedural due process." *Id.*, at 176.

We granted certiorari, 434 U. S. 815 (1977), to consider the correctness of this ruling. We reverse.

II

The governing principle of law is well established and is not questioned by the parties. As early as 1872, the Court recognized that it was "a general principle of the highest importance to the proper administration of justice that a judicial officer, in exercising the authority vested in him, [should] be free to act upon his own convictions, without apprehension of personal consequences to himself." *Bradley v. Fisher*, *supra*, at 347.⁵ For that reason the Court held that "judges

³ The District Court granted the defendants' motion to dismiss the federal claims for that reason and dismissed the remaining pendent state claims for lack of subject-matter jurisdiction.

⁴ *Sparkman v. McFarlin*, 552 F. 2d 172 (CA7 1977).

⁵ Even earlier, in *Randall v. Brigham*, 7 Wall. 523 (1869), the Court stated that judges are not responsible "to private parties in civil actions for their judicial acts, however injurious may be those acts, and however much they may deserve condemnation, unless perhaps where the acts are palpably in excess of the jurisdiction of the judges, and are done maliciously or corruptly." *Id.*, at 537. In *Bradley* the Court reconsidered that earlier